

ARKANSAS OWNER-BUILDER PERMIT KIT

Find out who inspects · File what applies anyway · Build to code regardless

Project Address: _____

City / Town: _____

County: _____

Local Building Department: _____

Owner-Builder: _____

Permit Application Date: _____

If your county has no building department, write NONE — and read AR.1 before anything else.

Every Arkansas statute, code section and requirement in this kit
is cited on the page it appears on — verified September 2026.

BUILD YOUR HOUSE

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First Edition — 2026

How to Use This Kit

Five working documents, from "is there even a building department here?" to the last inspection.

Arkansas does something that catches nearly every owner-builder out. It writes **one building code for the entire state** — the Arkansas Fire Prevention Code — and it forbids your city or county from adopting a different one. Then it declines to make anybody enforce it on a house.

There is no statewide building permit for a one- or two-family dwelling, no state residential plan review, and no state building inspector. The code's own text gives the game away: local governments may adopt the Arkansas Fire Prevention Code "*should they choose to adopt*" it (Volume I, Section 101.2.2). Cities are **permitted** to require a building permit (Ark. Code Ann. § 14-56-202) — not required to. Counties have only a general power to provide services (§ 14-14-802), and "building codes" appears nowhere in what that statute lists. Most unincorporated Arkansas has no building department at all.

So in much of this state the code legally governs your house and *no building official will ever look at it*. That is not permission to build badly — the standard still applies to you, and so does your liability. It means **you** are the inspection.

WHAT IS IN THE KIT

The five documents

	Document	What it does for you
AR.1	Owner-Builder Exemption Walkthrough	The licensing exemption for building your own home, what you may do yourself trade by trade, and the question that reshapes the whole build: does a building permit exist where you are building? Read this first.
AR.2	Permit Application Checklist	What to gather before you file — the approvals that apply wherever you build, the code editions actually in force, and what Arkansas deleted from the residential code.
AR.3	Inspection Sequence	The order inspections happen in, who calls each one when there is no building department, and fields for dates and results.
AR.4	Where to File Directory	How to find out whether your jurisdiction issues permits at all, the offices that exist even when no building department does, and a page to record every one you confirmed.
AR.5	Forms & Documents Index	Each document you will meet: what it is, when, and from where — plus what needs no permit at all.

HOW TO USE IT

- **Start with AR.1.** Its first section settles whether a building permit exists where you are building. Nothing else in the kit sequences correctly until you know that answer.
- **Then deal with the septic system.** On a rural Arkansas build the onsite wastewater permit is the longest pole, and it is a state requirement that does not care whether your county issues building permits.
- **Work AR.2 with a pen.** The approvals that apply everywhere deserve more of your attention than the one that might not apply at all.
- **Keep AR.3 on the job** and record every inspection as it happens — most of all if nobody is required to inspect you. It is the only evidence you will have when you sell, refinance or insure.

How these facts were checked — and what this is not

Every Arkansas claim here was read against its primary source in September 2026 — the Arkansas Code, the Code of Arkansas Rules, the Arkansas Fire Prevention Code's own adopted text, and the state agencies' own pages — and is cited where it appears. Where the answer genuinely depends on your city or county, the kit says so and gives you a line to write down what you confirmed. Not legal advice.